



ARBITRATION CERTIFICATION PROGRAM

1625 North Market Blvd., Suite N-112, Sacramento, CA 95834

P (916) 574-7350 | Toll-Free (800) 952-5210 | www.dca.ca.gov/acp



Via Electronic Mail Only

Dear Consumer:

The Arbitration Certification Program (ACP) was notified by the BBB AUTO LINE that you have initiated a case for arbitration. The ACP monitors and certifies the BBB AUTO LINE arbitration program to ensure compliance of California laws and regulations relating to the resolution of warranty disputes involving new/used vehicles purchased with the manufacturer's new-car warranty.

Additionally, the Department of Consumer of Affairs and ACP would like to take this opportunity to provide you with our *California's Certified Arbitration Programs* and *California's Lemon Law Q & A* trifolds. These trifolds answer some questions about California's Lemon Law and provides information about arbitration programs.

Please note that you should continue to contact the BBB AUTO LINE for questions regarding the progress of your arbitration case and submittals of your supporting documentation. The BBB AUTO LINE's number is (800) 955-5100.

We hope this information is helpful. If you have any questions or comments regarding the trifolds or the Arbitration Certification Program, please contact us at (916) 574-7350 or at acp@dca.ca.gov.

Regards,

Arbitration Certification Program

Enclosure: *California's Certified Arbitration Programs* and *California's Lemon Law Q & A*.

CALIFORNIA'S CERTIFIED ARBITRATION PROGRAMS



CERTIFIED ARBITRATION PROGRAM

Better Business Bureau (BBB) Auto Line

1676 International Drive, Suite 550
McLean, VA 22102
(800) 955-5100

MANUFACTURERS REPRESENTED

Aston Martin, Bentley, Ferrari,
Ford (includes Lincoln, Mercury,
Ford motorhome chassis), General
Motors (includes Buick, Cadillac,
Chevrolet, GMC, Hummer), Hyundai/
Genesis, Jaguar/Land Rover, Kia,
Lamborghini, Lotus, Maserati, Mazda,
Mercedes-Benz, Nissan/Infiniti, Rivian,
Volkswagen/Audi

California Dispute Settlement Program (CDSP)

PO Box 515811 (BMW)
P.O. Box 515315 (FCA U.S.)
P.O. Box 515541 (Tesla)
P.O. Box 515284 (Toyota)
Dallas, TX 75251

BMW (Includes Mini Cooper and Rolls
Royce divisions) (866) 906-3380
FCA U.S.—Alfa Romeo, Chrysler, Dodge,
Fiat, Jeep, and RAM (866) 662-4639
Tesla (866) 629-3204
Toyota (888) 300-6237

Consumer Arbitration Program for Motor Vehicles (CAP-Motors)

P.O. Box 1015
Hurst, TX 76053
(800) 279-5343

Porsche

NOTE: Some manufacturers do not have state-certified arbitration programs in California. They include: Acura, Daihatsu, Honda, Lexus, Mitsubishi, Peugeot, Subaru, Suzuki, and Volvo. Consumers are free to pursue their Lemon Law rights in court or they may also wish to try mediation through the New Motor Vehicle Board by calling (916) 445-1888 or go online to www.nmvb.ca.gov. To contact an attorney, you may check your local lawyer referral services. To find the nearest certified lawyer service near you, call the State Bar of California at (415) 538-2000 or go online to www.calbar.org.

For the most recent information regarding state-certified arbitration programs and Lemon Law regulations, visit the Department of Consumer Affairs' (DCA) Arbitration Certification Program website at www.LemonLaw.ca.gov or call DCA's Consumer Information Center at (800) 952-5210.



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Many manufacturers participate in an arbitration program that is certified by the Department of Consumer Affairs' Arbitration Certification Program. These manufacturers have agreed to comply with the arbitrator's decision, should the consumer accept it.

WHAT IS ARBITRATION?

Arbitration is a free and relatively simple way of resolving warranty disputes between manufacturers and consumers. Both you and the manufacturer agree to allow a neutral third party (an arbitrator) to decide whether a reasonable number of repair attempts have been made and what relief could be granted.



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ARBITRATION CERTIFICATION PROGRAM



WHAT ARE SOME ADVANTAGES OF ARBITRATION?

- It is free, faster, and less complicated than going to court.
- An arbitration decision is made within 40 days of a program receiving a claim.
- An arbitrator may request an inspection and written report on your vehicle's condition by an independent expert at no cost to you.
- You have the option to present your case in person, virtually, in writing, or over the phone. The arbitration meeting is open to the public, so you can bring a family member or friend for support.

WHAT ARE THE POSSIBLE RESULTS OF ARBITRATION?

Decisions in the arbitration process are made on a case-by-case basis and may include:

- An additional repair attempt.
- A replacement vehicle.
- A refund of the purchase price.
- Reimbursement for incidental expenses (towing, rental car, etc.).
- Denial.



- You can accept or reject the decision. If you accept it, the manufacturer must accept it, too.
- If you reject the decision, you can still pursue your rights in court. However, before you pursue your rights in court, you may consider consulting with an attorney.

WHAT SORT OF ISSUES QUALIFY FOR ARBITRATION?

The manufacturer failed to honor your new car warranty's terms, and you are still within your original warranty period.

WHAT ISSUES DO NOT QUALIFY FOR ARBITRATION?

- Sales disputes between consumers and dealers.
- Equipment or defects are not covered by the manufacturer's new vehicle warranty.
- Service contract or extended warranty issues.
- After-market (non-manufacturer) parts.
- Certain consequential damages.
- Personal injury claims.
- Cases in litigation.
- In most cases, disputes regarding the "living" portion of a motor home.

I BOUGHT MY VEHICLE USED WITH NO WARRANTY. DOES CALIFORNIA'S LEMON LAW STILL APPLY TO MY VEHICLE?

No. The Lemon Law applies only to disputes involving the manufacturer's new vehicle warranty.



If your new car has a serious warranty defect that the manufacturer cannot fix, even after multiple attempts, you may be eligible to get your vehicle repurchased or replaced.

That is California's Lemon Law.



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CALIFORNIA'S

LEMON LAW

Q&A



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CALIFORNIA DEPARTMENT OF
CONSUMER
AFFAIRS

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DOES CALIFORNIA'S LEMON LAW APPLY TO MY VEHICLE?

A: The Lemon Law covers the following new and used vehicles that come with the manufacturer's new vehicle warranty:

- Cars, pickup trucks, vans, and SUVs.
- The chassis, chassis cab, and drive train of a motor home.
- Dealer-owned vehicles and demonstrators.
- Vehicles purchased or leased primarily for business use. (Business fleet requirements are less than five vehicles and gross vehicle weight of less than 10,000 lbs.)
- Vehicles purchased or leased for personal, family, or household purposes.

WHAT IF THE MANUFACTURER OR DEALER CANNOT FIX MY VEHICLE?

A: If the manufacturer or dealer is unable to repair a serious warranty defect in your vehicle after a "reasonable" number of attempts, the manufacturer must either:

- Replace the vehicle.
- Refund its purchase price (whichever you prefer).

WHAT IS A "REASONABLE" NUMBER OF REPAIR ATTEMPTS?

A: California's Lemon Law Presumption provides guidelines for determining a "reasonable" number of repair attempts if any of the following occurs within 18 months or 18,000 miles after the purchase or leasing of a new car, whichever occurs first.

- The manufacturer or dealer has not fixed the same problem after four or more attempts.
- Your vehicle's problems could cause death or serious bodily injury if it is driven, and the manufacturer or dealer has made at least two unsuccessful repair attempts.
- The vehicle has been in the shop for more than 30 days (not necessarily in a row) for repair of any problems covered by its warranty.

DO I NEED TO GO TO COURT FOR THE LEMON LAW TO HELP ME?

A: No. In many cases, your vehicle's manufacturer may offer a state-certified arbitration program that may assist you in resolving your dispute. If so:

- You must request arbitration to claim the benefits of the Lemon Law Presumption.
- You may accept or reject the arbitrator's decision.

I BOUGHT MY VEHICLE USED WITH NO NEW VEHICLE WARRANTY. DOES CALIFORNIA'S LEMON LAW STILL APPLY TO MY VEHICLE?

A: No. The Lemon Law applies only to disputes involving the manufacturer's new vehicle warranty.

